

Mool Chandra Verma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 July 2022 · Writ-C No. 5341 of 2022 · **Writ disposed; clause 6.5 objection directed; coercive action stayed eight weeks.**

HEADNOTE

A writ seeking certiorari against a Dakshinanchal Vidyut Vitran Nigam Limited demand dated 19 August 2021 was disposed without merits. The consumer was given liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, to be decided after hearing, with a short stay of coercive recovery.

FACTUAL SUMMARY

Mool Chandra Verma filed a writ at the Allahabad High Court seeking certiorari to quash a notice/order dated 19 August 2021 issued by the Executive Engineer, Distribution Division, Rath, Hamirpur of Dakshinanchal Vidyut Vitran Nigam Limited, and its consequential effect. Counsel for the distribution licensee stated on instructions that the petitioner could object to the impugned demand, which would then be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection-to-demand

HOLDING

Without expressing any opinion on merits, the Division Bench disposed of the writ, granting liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer (respondent no. 4) within four weeks. If so filed, the objection shall be decided in accordance with law, preferably within the next four weeks, after reasonable opportunity of hearing. Coercive action on the impugned demand is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the Executive Engineer's demand was disposed by relegating the consumer to a Para 6.5 objection instead of examining the demand on merits. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Para 6.5 of the Supply Code was treated as the statutory forum for objection to the impugned demand, to be decided after hearing within a time-bound period. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE NOTICE/ORDER DATED 19.08.2021

The Court expressly declined to opine on the merits of the demand. ¶ 1